IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-518
CP(CAA) No. 26/230/232/ND/2022

IN THE MATTER OF:
APIS Natural Products Ltd & Anr. And APIS India Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 01.07.2022**

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL PRASAD BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : PCA Abhishek Nahta and Adv Rishabh Sachdeva
For the OL : Hemlata Rawat
For the RD : Adv. Shankari Mishra

ORDER

Heard the submissions made by the Proxy Counsel for the Petitioner as well as Proxy Counsel for the RD. Proxy Counsel for the RD prayed for grant of short time for filing the reply in this matter. Ten days' time is granted, post this matter after ten days. Counsel for the OL is also present and submitted that the reply has already been on record.

Proxy Counsel for the Petitioner is directed to inform the Counsel as well as the Petitioner to take steps for filing an affidavit-cum-undertakings stating that the tax liability will be borne by the Transferee Company and also last three years' Income Tax Return (ITR) for all the Companies involved in the amalgamation proposal. List the matter on **21.07.2022.**

Sd/-

(RAHUL PRASAD BHATNAGAR)
MEMBER (T)

Sd/-

(P.S.N. PRASAD)
MEMBER (J)

Md Saddam